

Brackenridge Civil Group Inc

www.brackenridgecivil.com

June 25, 2004

David Dyer

General Manager

Johnson PLC

Re: Stormwater Management Plan

Dear Mr. Dyer:

This letter sets out the terms on which our firm will prepare a stormwater management plan for Johnson PLC. It confirms the scope of the work, the fee, and the schedule as we discussed them at your office. *If the terms stated below correctly express our understanding, please sign one copy in the space provided at the end of this letter and return it to this office.* The signed copy will constitute the agreement between us, and we will commence the work on July 5, 2004.

Scope of Services

We will review the boundary and topographic survey and the geotechnical information furnished to us, and we will walk the property to confirm that the drainage patterns shown on the survey are the patterns that exist on the ground. We will delineate the drainage areas contributing to and leaving the site, and we will compute pre-development and post-development runoff rates for the design storms required by the applicable ordinance.

We will size the conveyance system, the detention facility, and the outlet structure, and we will prepare the grading required to route runoff to them. We will prepare a plan set consisting of a cover sheet, an existing conditions sheet, a grading and drainage plan, a detail sheet, and the erosion and sedimentation control sheets required to accompany the submittal. The plan set will be sealed.

We will prepare the stormwater management report that accompanies the plan set, transmit the package to the reviewing authority on your behalf, and respond in writing to one round of review comments. Should the authority issue comments that require redesign rather than clarification, we will notify your office before proceeding, and the additional work will be handled as described under Fees and Payment below. Construction staking, construction observation, record drawings, and wetland or environmental permitting are not included in this engagement.

Approach

We do not begin the analysis from the survey alone. One of our technicians will spend a day on the property before any computation is performed, because the outfall condition and the condition *of the receiving ditch are the two items most frequently drawn differently from the way they exist.* Where we find a difference between the drawing and the ground, we will report it to you in writing before it becomes a design assumption.

Our assumptions will be stated in the report where a reviewer can find them rather than carried in the back of the calculations. A reviewer who can see an assumption will argue with the assumption, which is a shorter conversation than the one that follows a review cycle spent looking for it.

Personnel

Pamela Warren, Project Engineer, will have charge of the design and will be your point of contact on technical matters. Charles Olson, Design Technician, will perform the site reconnaissance and prepare the grading and drainage sheets. Jeffrey Perez, Design Technician, will prepare the details and the quantity takeoff. I will review the plan set and the report before either leaves this office, and I will seal the drawings. We will not substitute the personnel named here without notice to you.

Fees and Payment

Our fee for the services described above is a lump sum of \$46,000. The fee includes the reimbursable costs ordinarily incurred on work of this character, being printing, plotting, mileage, and delivery of the submittal package. It does not include the review and permit fees charged by the reviewing authority, which are payable by Johnson PLC directly to that authority.

We will invoice monthly on the basis of the percentage of the work completed. Invoices are payable thirty days from the date of invoice. Amounts remaining unpaid after forty-five days bear interest at one percent per month. Services beyond the scope described above will be undertaken only upon your written authorization, and will be billed at our standard hourly rates then in effect.

Term and Termination

This agreement remains in effect until the services described above are complete. We expect the work to require approximately five months from commencement, subject to the response time of the reviewing authority, which is not within our control. Either party may terminate this agreement upon ten days written notice to the other. Upon termination you will pay for services performed and costs incurred through the effective date of termination, and we will furnish the work product

in the condition it has then reached. Drawings furnished upon termination will be unsealed and are not to be used for construction.

Confidentiality

Information you furnish to us and identify as confidential will be held in confidence and used only for the purposes of this engagement. This obligation does not extend to information that is already public, that we held before you furnished it, or that we are required to disclose by law. You will understand that documents filed with a public body in support of a permit application become public records upon filing, and that we cannot hold them otherwise.

Limitation of Liability

Our services will be performed with the care and skill ordinarily exercised by civil engineers practicing in this locality under similar conditions. No other warranty, express or implied, is made. The liability of this firm and of its employees to Johnson PLC arising out of this engagement, from any cause, shall not exceed the amount of the fee stated above. Neither party shall be liable to the other for consequential, incidental, or indirect damages, including loss of profit or loss of use.

Governing Law

This agreement is governed by the laws of the state in which the property is situated. It contains the entire understanding between the parties on this subject, supersedes prior discussions and correspondence, and may be amended only by a writing signed by both parties.

If the foregoing correctly states our agreement, please sign both copies where indicated, retain one for your file, and return the other to this office. We appreciate the opportunity to be of service to Johnson PLC. We will contact your office to arrange the site visit once the signed copy is in hand.

Very truly yours,

Mark Todd

Principal Engineer

Date: June 25, 2004

David Dyer

General Manager, Johnson PLC

Date: June 25, 2004